

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Mic Braun	Team: Squad #05	CCRB Case #: 202202503	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☒ O.L.	☐ Injury
Incident Date(s) Tuesday, 04/19/2022 7:25 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 10/19/2023	Precinct: 34		
Date/Time CV Reported Wed, 04/20/2022 11:18 AM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Wed, 04/20/2022 11:18 AM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. PO Ismael Perezortiz	14794	962682	034 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. PO Joshua Cumberbatch	22517	962339	034 PCT

Officer(s)	Allegation	Inv. Div. Recommendation
A . PO Ismael Perezortiz	Discourtesy: Police Officer Ismael Perezortiz spoke discourteously to § 87(2)(b)	A . Substantiated
B . PO Ismael Perezortiz	Abuse: Police Officer Ismael Perezortiz threatened § 87(2)(b) with the use of force.	B . Substantiated
C . PO Ismael Perezortiz	Off. Language: Police Officer Ismael Perezortiz made remarks to § 87(2)(b) based upon the gender of § 87(2)(b)	C . Substantiated

Case Summary

On April 20, 2022, § 87(2)(b) filed this complaint via the CCRB's Call Processing System.

On April 19, 2022, at approximately 7:25 p.m., Police Officers Ismael Perezortiz and Joshua Cumberbatch, both of the 34th Precinct, arrived at § 87(2)(b) in Manhattan, in response to § 87(2)(b) 911 call to file a harassment report. PO Perezortiz called § 87(2)(b) "fat boy" and "fat body" (**Allegation A: Discourtesy, substantiated**). PO Perezortiz threatened to fight § 87(2)(b) (**Allegation B: Abuse of Authority, substantiated**). PO Perezortiz also called § 87(2)(b) a "pussy" (**Allegation C: Offensive Language, substantiated**) and a "little fucking girl" (**Allegation A**).

The investigation obtained BWC footage from PO Perezortiz and PO Cumberbatch (**BR 01-02, summarized in BR 03-04**). All references to video refer to the timestamp in the video player and not to the on-screen timestamp.

Findings and Recommendations

Allegation (A) Discourtesy: Police Officer Ismael Perezortiz spoke discourteously to § 87(2)(b).

Allegation (B) Abuse of Authority: Police Officer Ismael Perezortiz threatened § 87(2)(b) with the use of force.

Allegation (C) Offensive Language: Police Officer Ismael Perezortiz made remarks to § 87(2)(b) based upon the gender of § 87(2)(b)

PO Perezortiz's BWC (**BR 01**) captures the officers speaking with § 87(2)(b) at his doorway about the person who has been harassing him. They talk over each other and argue with § 87(2)(b) about the information he has provided them. At 01:22, § 87(2)(b) uses profanity and tells PO Perezortiz that he is antagonizing him, and that he will file a CCRB complaint. He also tells PO Perezortiz that he is acting tough because he has a gun on him, to which PO Perezortiz responds at 01:35, "I'll take it off right now." At this point, PO Cumberbatch reaches back with his left arm off-screen in the direction of PO Perezortiz. § 87(2)(b) says that PO Perezortiz should Google his name so that he will know who he is dealing with, to which PO Perezortiz responds at 01:42, "Okay, fat boy." § 87(2)(b) repeatedly tells PO Cumberbatch that he will box PO Perezortiz, who is making remarks such as, "Do it bro," "I'm right here bro," "You got all the opportunity in the world, do it, man," and "Go ahead, jellybean." PO Cumberbatch's BWC footage (**BR 02, at 2:07**) captures him with his arm out between PO Perezortiz and § 87(2)(b) at some points pushing PO Perezortiz back, and at another point with his hand on § 87(2)(b) shoulder, asking, "Do you want me to handle it or not?" § 87(2)(b) tells PO Perezortiz that he cannot handle him even at his worst. PO Perezortiz's BWC footage (**BR 01, at 2:06**) captures him responding to § 87(2)(b) with, "Alright fat body, alright fat body. Go ahead, do something, bro." § 87(2)(b) who is standing further inside his doorway at this point, responds to this by telling PO Perezortiz to come inside. PO Perezortiz says, "I'm right here, you want to invite me inside?" and takes a step toward the open doorway. PO Perezortiz is held back by PO Cumberbatch, who pulls him away. At 02:14, as PO Cumberbatch closes the door, PO Perezortiz tells § 87(2)(b) "You're not gonna do nothing, pussy." As the door closes, he calls § 87(2)(b) as a "little fucking girl."

§ 87(2)(b) provided testimony in his phone statement (**BR 05**) and a formal interview (**BR 06**). He recounted that PO Perezortiz antagonized him with a verbal assault, using profanity and

disrespectful hate words to refer to his weight, such as “fat,” “pig,” “fat slob,” or something along those lines. § 87(2)(b) did not know how many times PO Perezortiz made these remarks and could not recall what specific profanity PO Perezortiz used towards him. § 87(2)(b) acknowledged that he became heated and that he invited PO Perezortiz into his apartment for a fistfight, and he recounted that PO Perezortiz accepted the challenge but PO Cumberbatch threw his arm across PO Perezortiz’s chest to make him move back.

PO Perezortiz testified (**BR 07**) that § 87(2)(b) became annoyed at the officers’ questions, and he yelled, used profanity, and made threats. § 87(2)(b) had an aggressive tone and was trying to make himself appear imposing. PO Perezortiz did not remember the words § 87(2)(b) used. PO Perezortiz did not remember whether § 87(2)(b) stepped closer or made any physical gestures towards him. He did not believe that § 87(2)(b) made physical indications that he wanted to fight. PO Perezortiz recounted that he responded to § 87(2)(b) but did not recall what he said. Initially, PO Perezortiz did not recall if he made any comments about § 87(2)(b) weight, or specifically called him “fat body” or “fat boy.” He did not recall making any statements about § 87(2)(b) gender, or specifically calling him a “pussy” or “little fucking girl.” When asked if he ever used profanity or offensive language during this incident, he answered that he was not sure what the language of the argument was, but there was a “back-and-forth” exchange at one point. PO Perezortiz did not make any statements to § 87(2)(b) trying to get him to fight. After reviewing the BWC footage, PO Perezortiz confirmed that he made the remarks captured in it. When asked to explain why he made the remarks, he testified that he and § 87(2)(b) were just reacting towards each other because they were in an argument, and that none of his remarks were made with any intentions. Although he admitted to telling § 87(2)(b) to go ahead with his threats to fight, he was not encouraging § 87(2)(b) with his words, because his tone was just part of their “back-and-forth” exchange. PO Perezortiz was not trying to be physically threatening to § 87(2)(b) and did not want to get physical with him. With regard to his use of profanity and offensive language, PO Perezortiz testified that he used those words because he was in an argument with § 87(2)(b) and there was offensive and threatening language going both ways. The officers had come to help and were met with a verbal assault, and PO Perezortiz was being defensive and exchanging words in response to § 87(2)(b) words.

Officers pledge to maintain a higher standard of integrity than is generally expected of others, and to respect the dignity of each individual and render their services with courtesy and civility. Patrol Guide Procedure 200-02 (BR 09). Discourteous language may be excusable when an officer is speaking in the context of a dynamic situation over which he is still attempting to gain control. However, discourteous statements are prohibited when they serve no legitimate purpose but to belittle the civilian. DAO-DCT Case Number 2015-15012 (BR 08).

Officers are prohibited from using discourteous or disrespectful remarks regarding another person’s gender. The term “gender” shall include actual or perceived sex and shall also include a person’s gender identity, self-image, appearance, behavior, or expression. Administrative Guide Procedure 304-06 (BR 10).

Officers may use force when it is reasonable to place a person in custody, to ensure the safety of themselves, and to protect other officers. Any use of force must be reasonable under the circumstances and not excessive. Patrol Guide Procedure 221-01 (BR 11).

The BWC footage makes clear that PO Perezortiz reacted to § 87(2)(b) argumentative and antagonistic behavior by insulting him with profane and offensive language. § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

it is recommended that **Allegations A & C** be closed as **substantiated**.

§ 87(2)(g)

PO Perezortiz himself admitted that he did not believe § 87(2)(b) was going to fight him and that he merely responded in kind to § 87(2)(b) challenge. § 87(2)(g) it is recommended that **Allegation B** be closed as **substantiated**.

Civilian and Officer CCRB Histories

- § 87(2)(b)
- PO Perezortiz has been a member of the NYPD for five years and has been a subject in two CCRB complaints and five allegations, all of which were substantiated:
 - **201808324** involved a substantiated allegation of discourtesy against PO Perezortiz. The Board recommended Instructions and the NYPD imposed Instructions.
 - **202004976** involved substantiated allegations of refusal to provide name, refusal to provide shield number, discourtesy, and a false official statement against PO Perezortiz. The Board recommended Charges, and the NYPD has not yet imposed discipline. § 87(2)(g)

Mediation, Civil, and Criminal Histories

- § 87(2)(b) declined to mediate this complaint.
- As of July 12, 2022, the New York City Office of the Comptroller has no record of a Notice of Claim being filed regarding this incident (**BR 13**).

§ 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad: 5

Investigator: Mic Braun Inv. Mic Braun September 6, 2022
Signature Print Title & Name Date

Squad Leader: Daniel Giansante IM Daniel Giansante September 6, 2022
Signature Print Title & Name Date

Reviewer: _____

Signature

Print Title & Name

Date